DOCUMENT 36 · AI THIRD PARTIES AND SUPPLIERS

# AI third parties and suppliers

Deciding what to build, buy or partner on, and managing AI suppliers with requirements proportionate to their criticality

**Fernando García Varela** Version 0.2 (working draft) 19-10-2026 Draft for review

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| requirement levels | classification factors | supplier lifecycle stages | key contractual clauses |

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**THE ESSENTIALS** **Conditional: depends on a trigger**

Trigger: an AI supplier is involved (model, platform or software with AI functions), including AI embedded in software already under contract. The requirement level N1 to N3 decides how much due diligence, which clauses and which exit plan.

Obligation matrix and layered reading (document 94)

01

# Purpose and scope

Most of the AI a company uses depends on third parties: general-purpose models consumed as a service, cloud platforms, software with AI features, integrators, data providers and open-source components. This document establishes how the decision to use a third party is made, what is required of it in proportion to its criticality, what the contract must say and how dependency and concentration are monitored.

## 1.1 Types of third party

| Type | Examples | Particular features |
|---|---|---|
| **Model provider** | General-purpose models accessible through an application programming interface; specialised models. | Frequent version changes; use of data; concentration. |
| **Platform** | Cloud, data platforms, agent platforms or model deployment platforms. | Architectural dependency; data location. |
| **Software with AI** | Business applications with AI features, either contracted specifically or already in place (section 8). | AI arrives through updates; limited control. |
| **Integrator or consultant** | Building, integration or operation on behalf of the company. | Knowledge held outside the company; ownership of what is built. |
| **Data provider** | Training, enrichment or reference data. | Licences, quality, legal basis. |
| **Open components** | Open-weight models, libraries, connectors, tool servers. | No contract: the requirements fall on the company's own verification (SEG-09, AG-13). |
| **Partner or alliance** | Joint development, shared exploitation, consortia. | Allocation of intellectual property, data and responsibilities. |

## 1.2 Reference standards

Consulted in September 2026; they must be checked against their current version:

- **Regulation (EU) 2024/1689** (EU AI Act), in particular responsibilities along the value chain (Art. 25), the obligations of deployers (Art. 26) and those of providers of general-purpose AI models (Art. 53). Amended by Regulation (EU) 2026/1744 (Digital Omnibus on AI), published in the Official Journal on 24 July 2026, which postpones the obligations for high-risk systems in Annex III to 2 December 2027 and those in Annex I to 2 August 2028.

- **Regulation (EU) 2022/2554 (DORA)**, Arts. 28 to 30 and their implementing acts: Delegated Regulation (EU) 2024/1773 (policy on contractual arrangements for critical or important functions), Implementing Regulation (EU) 2024/2956 (register of information) and Delegated Regulation (EU) 2025/532 (subcontracting).
- **Regulation (EU) 2016/679 (GDPR)**, Art. 28 (processors) and Chapter V (international transfers).
- **ISO/IEC 42001**, control A.10 of Annex A (third-party and customer relationships).
- **Directive (EU) 2022/2555 (NIS2)** as regards supply chain security, in accordance with its national transposition.

This document does not constitute legal advice. Contractual content must be reviewed with qualified legal counsel. The requirement levels and the obligations described are for guidance only: responsibility for the regulatory classification of third parties and systems and for compliance, including the applicable sector regulation, lies with the organisation (document 93, section 11).

02

# Principles

| # | Principle | Consequence |
|---|---|---|
| 1 | **Accountability is not outsourced** | The company is answerable to customers, supervisors and the board even if the system belongs to a third party. |
| 2 | **Proportionate requirements** | Due diligence, the contract and monitoring depend on the N1–N3 level, not on the contract amount. |
| 3 | **Plan the exit before entering** | The exit strategy is designed at selection, not at termination. |
| 4 | **The company's data do not train others' models** | Unless there is an express, documented decision. |
| 5 | **No model change goes unnoticed** | The supplier reports relevant changes and the company evaluates them. |
| 6 | **Concentration is managed at portfolio level** | Dependency on a supplier is measured across all systems, not just one. |
| 7 | **AI that arrives through updates is also governed** | AI features in software already contracted are entered in the inventory and assessed. |

| # | Principle | Consequence |
|---|---|---|
| 8 | **Testing is also using** | No external AI tool is used with company data —not even to test it, research or compare it— without the supplier assessment (P55) proportionate to its N1–N3 level. A test with synthetic or public data does not need it; one with internal, personal or confidential data does. |

> **Why it matters.** Many leaks do not happen in production but during a trial: someone uploads a real document to a tool "just to see how it works". Treating a trial as use makes the supplier assessment arrive before the data.

03

# Build, buy or partner

## 3.1 Options

| Option | What it means | When it makes sense |
|---|---|---|
| **Build** | In-house development, even if it uses third-party models or components. | Competitive differentiation, unique proprietary data, need for control. |
| **Buy** | Off-the-shelf product or service with limited configuration. | Non-differentiating function, mature solution, time-to-market priority. |
| **Adapt** | Off-the-shelf product or model with significant fine-tuning, integration or extension. | Mature base with relevant company-specific needs. |
| **Partner** | Joint development or exploitation with a third party. | Complementary capabilities or data; risk sharing in Transform bets. |

## 3.2 Decision criteria

| Criterion | Favours building | Favours buying | Favours partnering |
|---|---|---|---|
| **Differentiation** | The capability is a source of competitive advantage. | Standard function in the sector. | An advantage that neither party can achieve alone. |

| Criterion | Favours building | Favours buying | Favours partnering |
|---|---|---|---|
| **Data** | Unique and sensitive proprietary data. | The data needed are generic. | Complementary data from both parties. |
| **Internal capability** | Team able to build and operate. | No capability and no intention of creating it. | Partial capability. |
| **Time frame** | Time frame compatible with development. | Urgency. | Intermediate time frame. |
| **Control and compliance** | Need to explain, audit and modify in depth. | The supplier provides verifiable compliance. | Clear contractual allocation of obligations. |
| **Total cost** | Lower recurring cost at scale. | Lower initial investment. | Shared investment and risk. |
| **Dependency** | Avoid dependency in a critical function. | Acceptable and replaceable dependency. | Balanced mutual dependency. |
| **Intellectual property** | Need to own the result. | Not relevant. | Negotiable allocation. |

Rules:

1. The decision is documented in the phase 3 feasibility assessment (P10) using the criteria in the table and the three-year total cost according to the categories in document 42, including the **exit cost**.
2. In **Optimise** initiatives, buying should be the starting option unless there is a documented reason otherwise. In **Transform**, dependency on a third party for the differentiating capability must be justified to the body that approves the bet.
3. **Building on third-party models does not eliminate dependency**: this document applies to the model provider.
4. If the company substantially modifies a third party's high-risk system, changes its intended purpose or places it on the market under its own name, it may become a **provider** for the purposes of the AI Act (Art. 25(1)), with the corresponding obligations. This consequence is analysed before deciding to adapt.

04

# Requirement levels N1–N3

## 4.1 Classification factors

The level is determined for each relationship between a supplier and a service. The same supplier may have different levels for different services. **The level is the highest resulting from any of the four factors.**

| Factor | N1 · Standard | N2 · Enhanced | N3 · Critical |
|---|---|---|---|
| **Service criticality** | Internal process whose interruption would have an impact of 1–2 (document 33). | Relevant process with impact 3; direct exposure to customers; decisions about people. | Critical or important function (including the DORA definition where applicable); impact 4–5; high-risk system under the AI Act. |
| **Data processed** | Public or non-sensitive internal data. | Personal data or confidential information. | Special categories of data, large-scale personal data, trade secrets or critical confidential information. |
| **Autonomy** | A0: the supplier's system assists. | A1, or A2 without effects on third parties, money, personal data or production. | A2 or A3 with effects on third parties, money, personal data or production systems. |
| **Substitutability** | Replaceable in less than 3 months without relevant cost. | Replaceable in 3 to 12 months or with relevant cost. | More than 12 months, cost above the materiality threshold M, or no alternative. |

The substitutability time frames are indicative and are approved in C2 (document 13). The level is determined in phase 3, reviewed at every R6 and upon any change to the service, and recorded in T09.

## 4.2 Requirements by level

| Requirement | N1 · Standard | N2 · Enhanced | N3 · Critical |
|---|---|---|---|
| **Due diligence** | Basic questionnaire; review of terms of service and privacy terms. | Full questionnaire (4.3; P55); certifications and independent reports; analysis of sub-processors. | Everything in N2, plus financial soundness, continuity, subcontracting chain, references and direct or third-party verification. |
| **Security** | Verified data configuration (no training, retention). | Document-based AI security assessment (applicable SEG and AG). | Technical assessment, in-house adversarial testing or recent independent reports; right to test. |

| Requirement | N1 · Standard | N2 · Enhanced | N3 · Critical |
|---|---|---|---|
| **Contract** | Standard terms reviewed against clauses 1–4 of section 6. | AI annex and data processing agreement with the clauses marked for N2. | Negotiated contract with all clauses; DORA Art. 30(3) if it supports critical or important functions of a financial entity. |
| **Approval** | AI Product Owner with procurement clearance. | AI Sponsor with risk and data protection clearance. | AI Committee with clearance from risk, information security, data protection and legal. |
| **Audit** | Not required. | Annual independent reports. | Right of audit and access, directly or through a designated third party. |
| **Monitoring** | Annual review. | Half-yearly review and service indicators. | Quarterly review, monthly indicators, relationship governance meeting. |
| **Exit** | Guaranteed data export. | Documented exit plan. | Exit plan with an identified alternative and a documented rehearsal or test. |
| **Incidents** | According to the supplier's terms, verified. | Notification without undue delay within a time limit compatible with the company's own obligations. | Notification within an agreed maximum time limit (indicatively 24 hours or less from detection) and cooperation in the response and in regulatory notifications. |
| **Register** | T09. | T09. | T09 and, if DORA applies, the register of information. |

An N3 supplier normally implies **Enterprise** intensity for the initiatives that use it (01 §9.2).

## 4.3 Content of the due diligence questionnaire

1. **Identity and soundness:** group, country, years in operation, financial position, insurance.
2. **Service and model:** models used, proprietary or third-party; versions; policy on changes and version deprecation; model documentation.
3. **Data:** use for training or improvement; retention; location; transfers; encryption; separation between customers; deletion.
4. **Sub-processors and supply chain:** list, location, functions, change policy.
5. **Security:** certifications, penetration testing, vulnerability management, protection against prompt injection, leakage and extraction, agent controls if any.
6. **AI Act compliance:** role of the supplier, classification, technical documentation and instructions for use, logs, human oversight, cooperation on incidents, obligations as a provider of general-purpose AI models where applicable.
7. **Data protection:** status as processor, measures, support for impact assessments and data subject rights.

8. **Intellectual property:** ownership of outputs, training data licences, indemnity.
9. **Continuity:** availability, continuity plans, testing, dependency on third parties.
10. **Incidents:** process, notification time limits, history of relevant incidents.
11. **Exit:** export formats, assistance, time limits, certified deletion.
12. **Ethics and responsible use:** acceptable use policies, bias management, use restrictions.

The full questionnaire is in P55. A **Nonconformant** result in blocks 3 (data), 5 (security) or 7 (data protection) prevents the supplier from being used with production data until it is resolved.

**AI security purchasing criteria.** At N2 and N3 the company also asks for: ISO/IEC 42001 certification of the service, if any, with its scope; recent independent adversarial testing reports on the AI service; the right to carry out its own tests (N3); access to the input, output and action logs needed for monitoring and incident investigation (52 §11); and the location of processing, including the provider's own filters and monitoring. They are collected in block 5 of P55.

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# Supplier lifecycle

| Stage | What is done | Evidence | Owner | SEVEN-G phase |
|---|---|---|---|---|
| **1. Selection** | Build, buy or partner decision; requirements; preliminary N level; alternatives compared. | P10; requirements; comparison. | AI Product Owner with procurement. | 3 |
| **2. Due diligence** | Questionnaire and verification according to level; security and data protection assessment; RT-TER risks. | P14; P55; risks in P12. | Procurement, security, data protection, risk. | 3 |
| **3. Contract** | Negotiation with the clauses for the level; approval. | Contract (P56); clause list verified in P14. | Legal and procurement. | 3–4 |
| **4. Integration** | Secure configuration (retention, no training, regions); identities and permissions; logging; testing; exit plan. | P15, P18; exit plan. | AI Technical Owner. | 4–5 |
| **5. Monitoring** | Service indicators, incidents, model changes, sub-processors, periodic reviews, level reassessment. | T09; review minutes (P57 §5); P27. | Relationship manager and AI Operations Owner. | 6 |
| **6. Exit** | Activation of the plan: transition, portability, certified deletion, revocation of access, lessons. | Deletion certificate and closure record (P57 §8–9); P30. | AI Technical Owner and legal. | 7 |

**Reassessment triggers:** change of model or major version; change of sub-processors or location; S1 or S2 incident attributable to the supplier; change of ownership of the supplier; change of use or autonomy level; new regulatory obligation; deterioration in service indicators; notice of a model's deprecation.

06

# Key contractual clauses

**Yes** = must be included · **Rec.** = recommended · **—** = not required. At N1 many clauses are not negotiable: they are checked in the standard terms and, if missing, the risk is recorded together with who accepts it. At every level, while a **Yes** clause is missing without that risk recorded and accepted by the body corresponding to its level (33 §7), the supplier is not used with production data.

| # | Clause | What it must ensure | N1 | N2 | N3 |
|---|---|---|---|---|---|
| 1 | **Use of data for training** | The company's inputs, contexts, outputs and data are not used to train or improve models or for other purposes, unless expressly and specifically authorised. | Yes | Yes | Yes |
| 2 | **Confidentiality and data processing** | Confidentiality; data processing agreement in accordance with Art. 28 of the GDPR where personal data are involved; limited retention and deletion. | Yes | Yes | Yes |
| 3 | **Location and transfers** | Processing and storage regions; Chapter V GDPR safeguards for international transfers; prior notice of changes. | Yes | Yes | Yes |
| 4 | **Security** | Minimum measures, maintained certifications, vulnerability management, protection against AI-specific threats. | Yes | Yes | Yes |
| 5 | **Sub-processors** | Up-to-date list; prior authorisation or right to object to changes; same obligations down the chain. | Rec. | Yes | Yes |
| 6 | **Intellectual property and outputs** | Ownership of or rights to use the outputs; indemnity against infringement claims arising from the model or its training data; ownership of bespoke developments. | Rec. | Yes | Yes |
| 7 | **Incident notification** | Maximum time limit, minimum content, cooperation in the investigation and in the company's regulatory notifications (document 37). | Rec. | Yes | Yes |
| 8 | **Model changes** | Advance notice of changes to version, behaviour or model deprecation; ability to pin versions for a period; sufficient information to evaluate the change before it takes effect. | Rec. | Yes | Yes |

| # | Clause | What it must ensure | N1 | N2 | N3 |
|---|---|---|---|---|---|
| **9** | **Service levels** | Availability, latency, support, penalties and measurement. | — | Yes | Yes |
| **Sphere map and ambition levels** (10) | **Logs and traceability** | Access to the logs needed for oversight, investigation and regulatory obligations, with retention periods. | — | Yes | Yes |
| **Maturity model** (11) | **Audit and access** | Right of audit, inspection and access for the company, designated auditors and the competent supervisors. | — | Rec. | Yes |
| **Transformation index** (12) | **AI Act obligations along the value chain** | Allocation of roles; delivery of technical documentation and instructions for use; information on capabilities and limitations; cooperation on human oversight, logs, post-market monitoring and serious incidents; written agreement under Art. 25(4) where the third party supplies components to a high-risk system. | Rec. | Yes | Yes |
| **AI thesis, ambition and risk appetite** (13) | **Transparency on AI features** | Advance notice of new AI features in the service; ability to keep them disabled until assessed. | Rec. | Yes | Yes |
| **Portfolio management** (14) | **Continuity** | Tested continuity and recovery plans, with the company informed of their results. | — | Rec. | Yes |
| **15** | **Exit and transition** | Transition period, assistance, export in usable formats (data, configurations, prompts, logs), certified deletion, continuity during the transition. | Rec. | Yes | Yes |
| **16** | **Termination** | Right to terminate for serious breach, regulatory change, security breach, change of control or supervisory instruction. | Rec. | Yes | Yes |

## 6.1 AI Act obligations along the value chain

| Situation | What it implies for the contract |
|---|---|
| **The company deploys a provider's high-risk system** | The provider must supply instructions for use that allow the deployer's obligations to be met (Art. 26): use in accordance with the instructions, human oversight, monitoring, log retention and reporting of risks and serious incidents to the provider. The contract ensures access to that information and cooperation. |
| **The company becomes a provider** (Art. 25(1)) | Through substantial modification, change of intended purpose or placing on the market under its own name. The initial provider must cooperate and make information available (Art. 25(2)); the contract provides for this. |

| Situation | What it implies for the contract |
|---|---|
| **A third party supplies tools, services, components or processes to a high-risk system of the company** | Written agreement specifying the necessary information, capabilities, technical access and assistance (Art. 25(4)). This is not required for components other than general-purpose AI models made accessible to the public under a free and open-source licence. |
| **The company integrates a general-purpose AI model** | The model provider must make information and documentation available to downstream providers to enable them to understand its capabilities and limitations (Art. 53). The contract ensures that these are obtained and updated. |

The obligations for high-risk systems in Annex III apply from 2 December 2027, following the Digital Omnibus on AI. Long-term contracts signed before that date **should** already include these clauses.

## 6.2 DORA for ICT third parties

This applies to financial entities subject to DORA when the AI service is an ICT service provided by a third party:

| Requirement | Reference | Fit in SEVEN-G |
|---|---|---|
| **ICT third-party risk strategy and policy approved by the management body** | Art. 28(2); Delegated Regulation (EU) 2024/1773 | Corporate policy (31) and C2. |
| **Register of information on all arrangements with ICT third-party service providers** | Art. 28(3); Implementing Regulation (EU) 2024/2956 | T09 feeds the register. |
| **Pre-contractual analysis, due diligence and conflicts of interest** | Art. 28(4) | Stages 1 and 2 of the lifecycle (section 5). |
| **Exit strategies for services supporting critical or important functions** | Art. 28(8) | Clause 15; tested exit at N3. |
| **Assessment of concentration risk and of the subcontracting chain** | Art. 29; Delegated Regulation (EU) 2025/532 | Section 7; clause 5. |
| **Minimum contractual clauses for all ICT services and enhanced clauses for critical or important functions** | Art. 30(2) and 30(3) | Section 6; every N3 service of a financial entity is reviewed against Art. 30(3). |

| Requirement | Reference | Fit in SEVEN-G |
|---|---|---|
| **Critical ICT third-party service providers designated by the European Supervisory Authorities** | Arts. 31 et seq. | European oversight of the provider does not replace risk management by the entity. The ESAs published the first list of designated providers in November 2025; the current list must be consulted. |

If the company is not subject to DORA, its requirements **may** be used as a good practice reference for N3 services.

07

# Technological dependency and concentration

## 7.1 Dependency on a supplier

| Dependency signal | Measure |
|---|---|
| Prompts, workflows or agents designed on proprietary features. | Model abstraction layer; prompts and evaluations versioned in the company's own repositories. |
| Data, indexes or memories exportable only in closed formats. | Export clause; periodic copies in an open format. |
| Quality evaluations carried out only by the supplier. | In-house evaluation set that allows alternative models to be compared. |
| Knowledge of the solution held only by the integrator. | Documentation, knowledge transfer and ownership of what is built. |
| Usage-based pricing without limits or forecasting. | Consumption budgets, alerts and price review clauses. |
| No tested alternative. | Periodic assessment of at least one alternative for N3 services. |

The **portability test** (P57 §7) for N3 services consists of running the in-house evaluation set with an alternative model or provider and documenting the difference in results, cost and migration effort. It is carried out at least once a year or before renewing the contract.

## 7.2 Concentration

Concentration is measured at portfolio level (document 33 §10) with these indicators:

| Indicator | Definition |
|---|---|
| Systems per supplier | Number of systems in production that depend on each model provider and platform provider. |
| Dependent value | Proportion of the portfolio's validated value that depends on each supplier. |
| Dependent critical functions | Critical or important functions supported by each supplier. |
| N3 suppliers without a tested exit | Number and age. |
| Common sub-processors | Sub-processors that appear in the chain of several N2 or N3 suppliers. |

Concentration limits form part of the risk appetite (document 13). When they are exceeded, the AI Committee decides between diversifying, strengthening the exit or accepting the risk in accordance with 33 §7.

08

# Embedded AI in software already contracted

Many business applications incorporate AI features through updates, sometimes enabled by default. They are third-party AI systems embedded in processes (01 §1.2) and must be governed.

## 8.1 Process

| Step | What is done | Owner |
|---|---|---|
| **1. Identify** | Questionnaire (P55, annex A) to current software suppliers on existing and planned AI features; review of release notes; review of configurations. Priority is given to software that processes personal or confidential data or that plays a part in decisions. | AI Office with procurement and technology |
| **2. Inventory** | Registration of each relevant AI feature in the inventory (T02), linked to the supplier in T09, with the technology tag "Embedded third-party AI". | AI Office |
| **3. Classify** | Determine whether it is general-purpose corporate use or AI that plays a part in decisions, operations or customer relationships; N level; Enterprise criteria; regulatory classification. | AI Risk Owner |
| **4. Decide** | Keep disabled, enable with controls or enable as an initiative with the full lifecycle. | According to 4.2 and 01 §1.2 |

| Step | What is done | Owner |
|---|---|---|
| **5. Contract** | Addendum (P56 §8) with clauses 1, 3, 8 and 13 as a minimum and those corresponding to the level. | Legal and procurement |
| **6. Monitor** | Review of updates and configuration changes at every R6 or, failing that, half-yearly. | Relationship manager |

### 8.2 Rules

- AI features in contracted software that process personal or confidential data **must** remain disabled until assessed, where the configuration allows it.
- If they cannot be disabled, risk RT-TER-06 is recorded, assessed as a priority and decided on at the next AI Committee meeting.
- An embedded feature that plays a part in decisions about people or acts at autonomy level A2 or A3 goes through the full lifecycle, focused on selection, integration, contract and controls.

09

## Supplier register

The supplier register is tool **T09**, built on the *Supplier* entity of the common data model (03 §4). Each supplier–service relationship is a record.

| Block | Fields |
|---|---|
| **Identification** | Internal identifier; legal name; group; country; type of third party (1.1); internal relationship manager. |
| **Service** | Plain-language description; models and versions; type of sourcing (build on, buy, adapt, partner); linked systems and initiatives (IA-AAAA-NNN). |
| **Classification** | N1–N3 level with the value of each factor and justification; critical or important function (yes or no); maximum autonomy level; regulatory role of the supplier and of the company. |
| **Data** | Data categories; personal data (yes or no); location; transfers and safeguard; retention; use for training (excluded, authorised or unverified). |
| **Chain** | Sub-processors with location and function; subcontracting of critical functions. |
| **Contract** | Reference; start, renewal and end dates; notice period; status of the 16 clauses (present, partial, absent, not applicable). |
| **Assessment** | Date and result of due diligence (P14); certifications and reports with validity; security assessment; conditions imposed. |

| Block | Fields |
|---|---|
| **Risk** | RT-TER and other linked risks (T06); main residual level. |
| **Monitoring** | Service indicators; attributable incidents (INC-AAAA-NNN); notified model changes; date of last and next review. |
| **Dependency and exit** | Estimated substitutability; identified alternative; exit plan (yes or no, test date); dependent portfolio value. |
| **Status** | Under assessment · Approved · Approved with conditions · Rejected · Exiting · Terminated. |
| **History** | Events with date, author and reason. |

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# Monitoring and indicators

| Indicator | Purpose | Recipient |
|---|---|---|
| **Suppliers by N1–N3 level and by type** | Overview of third-party exposure. | AI Committee |
| **Overdue periodic reviews** | Detect relationships without monitoring. | AI Office |
| **N2 and N3 suppliers with missing key clauses** | Prioritise renegotiation. | AI Committee |
| **Unverified no-training configuration** | Control RT-TER-02. | Data protection |
| **Model changes notified and evaluated before taking effect** | Control RT-TER-03. | AI Technical Owners |
| **Incidents attributable to suppliers by severity** | Service quality and compliance. | AI Committee; board if S1 |
| **N3 suppliers without a tested exit** | Control RT-TER-01 and RT-TER-05. | AI Committee; board |
| **Value concentration in the main supplier** | Portfolio risk. | Board |
| **Embedded AI features identified and assessed** | Control RT-TER-06. | AI Office |

The board or its board committee receives a quarterly report on concentration, N3 suppliers without a tested exit, S1 and S2 incidents attributable to third parties and decisions to accept High-level third-party risks.

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# Roles

| Role | Responsibility in third-party management |
|---|---|
| **AI Product Owner** | Need, requirements, proposed build, buy or partner decision. |
| **AI Technical Owner** | Technical assessment, secure integration, portability, technical exit plan. |
| **AI Operations Owner** | Service indicators, incidents and model changes in production. |
| **AI Risk Owner** | N level, RT-TER risks, clearance. |
| **Procurement** | Selection process, questionnaire, register and contract management. |
| **Legal** | Clauses, regulatory roles, intellectual property. |
| **Information security** | Security assessment and clearance at N2 and N3. |
| **Data protection** | Data processing agreement, transfers, impact assessments. |
| **AI Committee** | Approval of N3, concentration limits, acceptance of High risks. |
| **AI Auditor** | Verifies at G3 and G5 that the assessment and the contract correspond to the level. |

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# Associated tools and templates

| Name | Use |
|---|---|
| **AI supplier assessment** (P14) | N level with factors; build, buy or partner decision; due diligence questionnaire; security and data protection assessment; verification of the 16 clauses; risks; exit plan; clearances and approval. Phase 3; updated at R6 and when triggers occur. |
| **AI supplier register** (T09) | Fields in section 9, review and renewal alerts, indicators in section 10 and concentration view. Module of T01; its working format is P57. |
| **AI supplier due diligence questionnaire** (P55) | Questionnaire of section 4.3 by level, with scoring and transfer to P14; annex A for embedded AI (section 8). Phase 3. |
| **Model AI contractual clauses** (P56) | Model wording of the 16 clauses in section 6, AI annex for existing contracts and embedded AI addendum. Phases 3–4. |

| Name | Use |
|---|---|
| **Supplier register and exit plan** (P57) | Register of section 9, concentration, review minutes, exit plan, portability test, deletion certificate and closure record (sections 5, 7 and 9). Phases 3 to 7. |
| **Feasibility assessment · Risk matrix and register · Scale or retire decision** (P10 · P12 · P30) | Sourcing decision, RT-TER risks and exit. |
| **Inventory · Risks · Incidents** (T02 · T06 · T08) | Linked systems, third-party risks and incidents. |

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# Related documents

| Document | Relationship |
|---|---|
| **01 · Foundational methodology** | Third-party AI embedded in processes (§1.2), Enterprise criteria (§9.2) and fit of DORA (§13). |
| **13 · AI thesis, ambition and risk appetite** | Substitutability time frames, threshold M and concentration limits. |
| **31 · Corporate policy and acceptable use** | Corporate use of general-purpose AI and third-party policy. |
| **33 · AI risk methodology** | RT-TER risks and portfolio risk. |
| **34 · Regulatory mapping** | Value chain obligations under the AI Act, GDPR and DORA. |
| **35 · AI and agent security** | SEG and AG controls required of suppliers and components. |
| **37 · Nonconformities and incidents** | Supplier incidents and notifications. |
| **42 · AI costs** | Total cost and exit cost. |

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# Version control

| Version | Date | Changes |
|---|---|---|
| **0.1** | 16-09-2026 | First version. Defines the criteria for building, buying, adapting or partnering; the N1–N3 requirement levels with four factors and requirements by level; the supplier lifecycle; sixteen key contractual clauses, with AI Act obligations along the value chain and DORA; management of dependency and concentration; the treatment of embedded AI and the supplier register fields. |
| **0.2** | 19-10-2026 | Principle 8 "Testing is also using" and AI security purchasing criteria (4.3) (D159). |

# External sources cited

Links to the official or primary source, checked before publication. Always verify the version in force on the date of use.


**Commission Delegated Regulation (EU) 2024/1773 of 13 March 2024 supplementing Regulation (EU) 2022/2554 with regard to regulatory technical standards specifying the detailed content of the policy regarding contractual arrangements on the use of ICT services supporting critical or important functions provided by ICT third-party service providers** · https://eur-lex.europa.eu/eli/reg_del/2024/1773/oj/eng · Comisión Europea · 13-03-2024

**Commission Delegated Regulation (EU) 2025/532 of 24 March 2025 supplementing Regulation (EU) 2022/2554 with regard to regulatory technical standards specifying the elements that a financial entity has to determine and assess when subcontracting ICT services supporting critical or important functions** · https://eur-lex.europa.eu/eli/reg_del/2025/532/oj/eng · Comisión Europea · 24-03-2025

**Commission Implementing Regulation (EU) 2024/2956 of 29 November 2024 laying down implementing technical standards for the application of Regulation (EU) 2022/2554 with regard to standard templates for the register of information** · https://eur-lex.europa.eu/eli/reg_impl/2024/2956/oj/eng · Comisión Europea · 29-11-2024

**Directive (EU) 2022/2555 of the European Parliament and of the Council of 14 December 2022 on measures for a high common level of cybersecurity across the Union (NIS 2 Directive)** · https://eur-lex.europa.eu/eli/dir/2022/2555/oj/eng · Parlamento Europeo y Consejo de la UE · 14-12-2022

**Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)** · https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng · Parlamento Europeo y Consejo de la UE · 27-04-2016

**Regulation (EU) 2022/2554 of the European Parliament and of the Council of 14 December 2022 on digital operational resilience for the financial sector (DORA)** · https://eur-lex.europa.eu/eli/reg/2022/2554/oj/eng · Parlamento Europeo y Consejo de la UE · 14-12-2022

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**Regulation (EU) 2026/1744 of the European Parliament and of the Council of 8 July 2026 amending Regulations (EU) 2024/1689, (EU) 2018/1139 and (EU) 2023/1230 as regards the simplification of the implementation of harmonised rules on artificial intelligence (Digital Omnibus on AI)** · https://eur-lex.europa.eu/eli/reg/2026/1744/oj/eng · Parlamento Europeo y Consejo de la UE · 08-07-2026

**The European Supervisory Authorities (EBA, EIOPA and ESMA) designate critical ICT third-party providers under the Digital Operational Resilience Act (18 November 2025)** · https://www.eba.europa.eu/publications-and-media/press-releases/european-supervisory-authorities-designate-critical-ict-third-party-providers-under-digital · Autoridades Europeas de Supervisión (EBA, EIOPA, ESMA) · 18-11-2025

**ISO/IEC 42001:2023 Information technology — Artificial intelligence — Management system** · https://www.iso.org/standard/42001 · ISO/IEC (JTC 1/SC 42) · 18-12-2023